A3 — What would put this bid out (working draft)

State after ADD-02 (issued 2026-10-22); Proposal Due Date (PDD) 2026-11-26 14:00 Riyadh time. 16 (+ VOL-IV-F4C-N1, which restates VOL-I-9.4-01) explicit bid-out triggers + 1 below the score threshold = 18 A3 rows. WD: Working Day; PBN: Preferred Bidder Notification; LCC: Local Content Certificate; PCOD: Project Commercial Operation Date; †: decide before submission (no decision recorded).

INTERVIEW DEMO — review approvals are assumed for demonstration unless a recorded operator decision says otherwise. accepted 205 rows. No actual human review or tender release is claimed. Open issues and unknown answers stay open. Explicit wording only. Shortened to fit one page.

Explicit — Rejection: 5

VOL-I-6.1-01 Deliver the Proposal to the Authority by the Proposal Due Date and time, at the Appendix 3 address — “Thursday 26 November 2026” [VOL-I 6.6 p3; the requirement as amended: ADD-01 2.1 p1 (amending VOL-I 6.1) · confidence high] INFEASIBLE on PROVISIONAL assumed lead times: Local Content Certificate 30 WD, not stated in the pack; float -12 WD; I-LCC-ISSUER · amended by addendum

VOL-I-8.5-01 Evidence at least two (2) reference sewage treatment plants of at least 80,000 m3/day, each having achieved commercial operation within the ten (10) years preceding the Proposal Due Date — window starts 2016-11-27 (2016-11-26 if boundary inclusive): 10 years before the PDD 2026-11-26 [VOL-I 8.5#fn12 p4 · confidence high] see ADD-01/2.2, ADD-01/Q5

VOL-I-1.4-01 Only a Bidder prequalified under RFQ NUPA/ISTP/2025/031 and named in Appendix 1 may submit a Proposal [VOL-I 1.4 p2 · confidence high]

VOL-I-8.1-01 Bid as the prequalified entity or consortium; no change to composition, shareholding or lead member without the Authority's prior written consent [VOL-I 8.1 p4 · confidence high]

VOL-I-8.2-01 No firm or affiliate of a member may participate in more than one Proposal [VOL-I 8.2 p4 · confidence high]

Explicit — Disqualification: 2

VOL-I-5.4-01 Be represented at the Pre-Bid Conference on 30 September 2026 — held 2026-09-30 (before the status date): compliance is a bidder fact to confirm (I-BIDDER-FACTS); ADD-01 3.1 window closed 2026-10-14 (2026-10-15 if event day excluded) [VOL-I 5.4 p3 · confidence high]

VOL-I-4.2-01 Blackout: no contact with the Authority's board, staff, consultants or advisors about the Project other than through the Portal, until the PBN [VOL-I 4.2 p3 · confidence high]

Explicit — Non-responsive: 8

VOL-I-8.6-01 Local Content Certificate from the competent authority showing the minimum construction-phase local content ratio — “not less than thirty-five per cent (35%) for the construction phase” [ADD-02 9.1 p3 (reinstating VOL-I 8.6) · confidence high] INFEASIBLE on PROVISIONAL assumed lead times: Local Content Certificate 30 WD, not stated in the pack; float -12 WD; I-LCC-ISSUER · see ADD-01/4.2 · reinstated by addendum

VOL-I-9.3-01 Form 4-A (as reissued by ADD-01 App A) signed by a person holding a notarised Power of Attorney from the lead member; an unsigned or improperly executed Form 4-A renders the Proposal non-responsive [VOL-I 9.3 p5 · confidence high]

VOL-I-9.4-01 Form 4-C completed in Arabic, signed and stamped by an authorised signatory of each member [VOL-I 9.4 p5 · confidence high] — also stated in VOL-IV-F4C-N1 (VOL-IV F4-C/image/note p6, confidence medium), VOL-IV F4-C/para1 p5; ADD-02 Q9: English with an Arabic translation is not acceptable

ADD-02-7.2-01 Complete and submit the new Form 4-G (cybersecurity undertaking) with Envelope A [ADD-02 7.2 p3 · confidence high] new by addendum

VOL-I-6.2-02 No price, rate or other commercial information anywhere in Envelope A [VOL-I 6.2 p3 · confidence medium (see I-VOL-I-ENV-A-PRICES)]

VOL-I-9.6-01 Form 4-E lists every deviation, qualification or reservation to Volume V; never 'no deviations' with a qualification elsewhere [VOL-I 9.6 p5 · confidence high]

VOL-I-10.5-01 No conditional price, alternative price, or price subject to adjustment other than as provided in Volume V [VOL-I 10.5 p5 · confidence high]

VOL-I-11.5-01 A response to an Authority clarification request must not change the Availability Payment quoted [VOL-I 11.5 p5 · confidence high]

Explicit — Exclusion (Arabic text only; not equated with the other categories; I-F4C-EXCLUSION): 1

VOL-IV-F4C-04 Form 4-C declaration 4 (Arabic only): all information in the Proposal is true and complete [VOL-IV F4-C/image/decl4 p6 · confidence medium]

Explicit — Envelope B returned unopened (technical score below the threshold): 1

VOL-I-11.3-01 Technical score of at least 70 out of 100 to proceed to commercial evaluation [VOL-I 11.3 p5 · confidence high]

General gate — mandatory, pass or fail; no bid-out consequence stated (VOL-I 11.1(i)): 36

Mandatory; no bid-out consequence stated. VOL-I 11.1(i) is a general pass/fail check; the pack does not say which clause is checked at which stage (8 are Envelope B items, VOL-I 11.3). No clause-specific label or curability is implied (I-NO-CONSEQUENCE). Rows: a3_detail.html.

Unresolved matters, grouped — 52 open issues (25 listed), 21 clarification questions drafted (not sent)

52 open issues: 25 listed, 22 folded (+n), 4 detail-only and 1 gate-note issues (identifiers and full reasons on a3_detail.html). Line: id, reason (owner); † 11 unresolved, 6 not supplied, 1 needed by A5 before the PDD. Unknown answers stay unknown. Questions: clarification register (supporting record, out/a4/clarification_register.). Reasons abbreviated (…) to fit one page; in full on a3_detail.html.*

Forms and declarations (5) questions drafted: 3 (on no listed issue: CQ-F4D-GUARANTEE-SCOPE (guarantee scope); no bid-out row)
- † **I-F4A-FIELDS** DEMO OPEN: Reissued Form 4-A (ADD-01 App A): stale PDD, dropped fields, a missing 'paragraph 1' … (Legal) +2
- † **I-F4C-EXCLUSION** DEMO OPEN: Form 4-C decl. 4 (Arabic): 'exclusion of the proposal', not equated with any category … (Legal)
- **I-F4G-LETTERING** Form 4-G: re-lettering of the VOL-I 9.1 list (Bid manager) +1
- † **I-F4G-NO** DEMO OPEN: Form 4-G: effect of a 'No' not stated; undertakings 3-6 add post-award duties not … (Technical)
- † **I-F4D-WORDING** DEMO OPEN: Form 4-D: how far its wording may change ('substantially in the form', VOL-I 8.7) (Legal)

Envelopes, copies and files (5) questions drafted: 5
- † **I-VOL-I-ENV-B** DEMO OPEN: Envelope B holds 'only' Form 4-F and the model (VOL-I 10.1), yet 10.3 and … (Legal)
- † **I-VOL-I-ENV-A-PRICES** DEMO OPEN: No commercial information in Envelope A (VOL-I 6.2), yet Form 4-B there asks for … (Legal) +2
- † **I-VOL-I-COPIES** how the single USB copy relates to the two separately sealed envelopes and how its means … (Bid manager)
- **I-VOL-I-FILE-NAMES** Excel Financial Model vs the Appendix 2 naming convention (ends in '.pdf'; [BIDDER] and [YYYYMMDD] undefined) (Bid manager)
- **I-VOL-I-APPENDICES** page-limit appendices not identified (Bid manager) +1

Technical, permit and design basis (3) questions drafted: 4 (on no listed issue: CQ-PCOD-RELIABILITY-RUN (rolling averages in the 30-day reliability run); CQ-RESERVOIR (treated effluent storage reservoir); no bid-out row)
- **I-READING-T24** Table 2-4: anything outside the visible image (e.g. whether a further note was cut off below … (Owner)
- **I-FLOWS** OPEN — REVIEW ASSUMED FOR DEMO: 'dry weather flow' in Table 2-6 row 2-6.4 is undefined … (Process engineer) +1
- † **I-VOL-II-T24-TENSIONS** DEMO OPEN: Table 2-4 'all values are maxima' vs the chlorine 0.5-1.0 and pH 6.0-9.0 ranges … (Process engineer) +2

Contract, bond and concession (3) questions drafted: 4 (on no listed issue: CQ-HANDBACK-CONDITION (handback condition); no bid-out row)
- † **I-CONCESSION** DEMO OPEN: Concession term from PCOD (VOL-I 12.1) or Effective Date (VOL-V 3.1)? ADD-02 Q7 cites … (Legal) +1
- **I-VOL-I-BOND-LONGSTOP** OPEN — REVIEW ASSUMED FOR DEMO: the Bid Bond's 180-day validity from the PDD (VOL-I 6.3) … (Commercial lead)
- **I-VOL-V-PERSISTENT-BREACH** DEMO OPEN: 'second occurrence' of a persistent breach undefined (Legal counsel)

Evaluation and scoring (1) questions drafted: 1
- **I-VOL-IV-SCALE** five-point scoring scale undefined (Bid manager) +1

Referenced but not supplied (impact noted; not a prerequisite for completion) (4) questions drafted: 3
- † **I-PERMIT** DEMO OPEN: The Environmental Permit is not supplied, yet it prevails over the Table 2-4 reproduction … (Technical) +1
- † **I-VOL-III** Volume III / Drawing 03-C-114 (delivery point, VOL-II 5.1) not supplied; no omission claim after the … (Technical)
- **I-VOL-II-MISSING** Environmental and Social Impact Assessment, geotechnical report, other data-room items not supplied (Technical lead) +1
- † **I-VOL-V-MISSING** DEMO OPEN: VOL-V extract: Schedules 7, 9, 11, 12, Direct Agreement missing; unlisted deviations count as … (Legal counsel) +2

Programme, evidence and bidder facts (4) questions drafted: 1
- † **I-LCC-ISSUER** DEMO OPEN: LCC issuer and lead time not stated; A5: 6 INFEASIBLE by 12 WD (PROVISIONAL … (Commercial) +7
- **I-BIDDER-FACTS** assumed bidder to confirm: members, foreign members, reference plants, signatories, attendance (Bid manager)
- † **I-AUTO-COUNTING** day count not stated (ADD-01 3.1; VOL-I 6.3, 7.1, 8.5; Form 4-A); A1 Dates: both readings … (Bid manager)
- **I-A5-attendance-notice** CONDITIONAL — window elapsed 2026-10-14 (2026-10-15 if event day excluded); whether the Bidder considers its attendance … (Bid management)

tenderpack: evidence build + curation + config/assumptions.yaml. Each id links to a3_detail.html (quotes, sources, flags) and traces to A1 and A2.